Anil Kumar Khemka vs Central Bureau Of Investigation (Cbi) on 16 December, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 717/2022
ANIL KUMAR KHEMKA
Through: Dr
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versus

CENTRAL BUREAU OF INVESTIGATION (CBI).....Respondent
Through: Mr. Ripudaman Bhardwaj, SPP
(through VC) with Mr. Kushagra
Kumar & Mr. Amit Kumar Rana,
Adv. for CBI.

CORAM:
HON'BLE MR. JUSTICE VIKAS MAHAJAN
ORDER

% 16.12.2025 CRL.M.A. 31975/2025 (Exemption)

1. Allowed, subject to all just exceptions.

2. Application stands disposed of.

CRL.M.A. 31974/2025 (correction/modification of order dated 24.02.2023)

3. The present application has been filed seeking modification of the order dated 24.02.2023 passed in BAIL APPL No. 717/2022.

4. Dr. Aman Gaur, learned counsel appearing on behalf of the applicant/petitioner submits that the petitioner was granted regular bail in connection with RC BD1/2014/E/0004 dated 19.02.2014 registered at Police Station CBI/BSFC, New Delhi subject to the conditions mentioned therein.

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5. He submits that one of the conditions subject to which the petitioner was granted bail was that the petitioner will furnish a personal bond in the sum of Rs 30,00,000/- with two sureties each in the like amount, to the satisfaction of the Trial Court. It was further directed that the sureties will be of near relative either of nephew or brother-in-law as submitted.

6. He further submits that in case of other co-accused similar condition has been modified and the surety amount has been reduced to Rs 20,00,000/- from Rs 30,00,000/- with one surety instead of two surieties.

7. To buttress his contentions learned counsel has invited the attention of the Court to the order dated 06.12.2023 passed in BAIL APPL No. 1203/2022 as well as order dated 16.10.2025 passed in BAIL APPL No. 716/2022.

8. In view of the above, issue notice. Mr. Ripudaman Bhardwaj, learned SPP appearing on behalf of CBI accepts notice.

9. He opposes the present application on the ground that in the fraud which is subject matter of the aforesaid RC, an amount of Rs 300 crores has been routed through the present petitioner. He further contends that the Petitioner has sufficient resources, therefore, the condition with regard to the furnishing of surety may not be modified.

10. I have heard learned counsel for the parties.

11. The Petitioner was granted bail almost three years ago vide order dated 24.02.2023. It is not the case of the Respondent that the applicant has not complied with the bail conditions or has misused the liberty granted to him.

12. In view of the aforesaid facts and circumstances and considering the orders already passed by this Court modifying similar bail condition in case This is a digitally signed order.

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> "(a) The applicant shall furnish a personal bond in the sum of Rs 20,00,000/-(Rupees Twenty Lakhs) with one surety in the like amount, to the satisfaction of the Trial Court. The surety will be of near relative, either of nephew or brother-in-law, as stated by the learned counsel for the Applicant."

13. The rest of the conditions mentioned in the order dated 24.02.2023 shall remain in force.

14. The application stands disposed of in the above terms.

VIKAS MAHAJAN, J DECEMBER 16, 2025 sk This is a digitally signed order.

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